

Petitioner v. State of U.P. and Others

Allahabad High Court · Division Bench · October 7, 2025 · Writ-C No. 35068 of 2025 · **Writ disposed of; objection to be decided under Clause 6.8 after hearing.**

HEADNOTE

Writ against a recovery citation for electricity dues disposed of without deciding merits. Subject to deposit of Rs. 30,000, the consumer may apply to the assessing officer, who shall decide the objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 by a reasoned speaking order after personal hearing and confrontation with adverse material.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 20 February 2024 seeking Rs. 1,29,487 towards electricity dues. He claimed no opportunity of hearing had been given before the demand was created. The High Court recorded that it was not clear whether assessment procedure had been fully complied with, and that no useful purpose would be served by keeping the writ pending or calling for a counter-affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

assessment-hearing

HOLDING

Where it is unclear that assessment procedure was fully complied with and the consumer claims he was given no hearing before a recovery citation for electricity dues, the writ court will not keep the petition pending. Subject to a deposit towards the disputed demand, the consumer may apply to the assessing officer, who shall decide the objection under Clause 6.8 by a reasoned speaking order after confronting the consumer with adverse material and granting personal hearing. ¶ 4-5

PRINCIPLE TAGS

opportunity-before-final-assessment Writ against a recovery citation for electricity dues disposed of without deciding merits. Subject to deposit of Rs. 30,000, the consumer may apply to the assessing officer, who shall decide the objection under Clause 6.8 of the U.P.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ASSESSMENT PROCEDURE HAD BEEN FULLY COMPLIED WITH, AND THE MERITS OF THE RS. 1,29,487 RECOVERY CITATION

The Court recorded that compliance was unclear and relegated the objection to the assessing officer under Clause 6.8. ¶ 3-5